

STATE OF NEW YORK

3967--A

2025-2026 Regular Sessions

IN SENATE

January 31, 2025

Introduced by Sens. SEPULVEDA, CLEARE, COMRIE, FERNANDEZ, HARKHAM, HOYLMAN-SIGAL, JACKSON, KRUEGER, MAY, MURRAY, MYRIE, O'MARA, RIVERA, SALAZAR, SANDERS, SERRANO, WEIK -- read twice and ordered printed, and when printed to be committed to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the penal law, in relation to individuals engaged in prostitution who are victims of or witnesses to a crime

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The penal law is amended by adding a new section 230.45 to
2 read as follows:

3 § 230.45 Immunity from prosecution.

4 This section applies where a person is the victim of or a witness to a
5 crime (including an individual who becomes aware that another person is
6 a victim of a crime), and has engaged or is alleged to have engaged in
7 an act prohibited under section 230.00, 230.03, or 230.40 of this arti-
8 cle at or in reasonable proximity to the time of the crime or under
9 circumstances reasonably related to the crime, and, in good faith, (a)
10 reports the crime to a criminal law enforcement agency, (b) seeks or
11 receives health care services as a result of the crime, or (c) assists
12 or attempts to assist in the investigation or prosecution of the crime.
13 No such victim or witness to the crime shall be charged or prosecuted
14 for an offense under section 230.00, 230.03, or 230.40 of this article
15 which is alleged to have been committed at or in reasonable proximity to
16 the time of the crime or under circumstances reasonably related to the
17 crime for which the person is a victim or witness. As used in this
18 section, "crime" shall include an act that reasonably appears to be a
19 crime, regardless of whether it results in a conviction as a crime.

20 § 2. This act shall take effect on the sixtieth day after it shall
21 have become a law, and shall apply to any prosecution pending on or
22 after the time it shall take effect.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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